
EMPLOYMENT AGREEMENT

Full-Time — At-Will Employment with Defined Terms

EMPLOYER	EMPLOYEE
Brightwave Digital Solutions LLC	Sofia Marchetti
A Texas Limited Liability Company	Social Security: On file with HR
12900 Innovation Blvd, Suite 300	Current Address: 45 Elm Grove Circle
Austin, TX 78727	Austin, TX 78745
HR Contact: hr@brightwave.io	Email: s.marchetti@email.com

Start Date: **November 1, 2026** | Job Title: **Senior Product Designer** | Department: **Product & Design**

1. POSITION AND DUTIES

1.1 Title. Employee is hired as **Senior Product Designer**, reporting directly to the Vice President of Product, currently Mr. Alan Chu.

1.2 Duties. Employee shall perform the following core responsibilities: lead UX/UI design for Brightwave's SaaS products; conduct user research and usability testing; collaborate with engineering and product teams; maintain the company design system; and mentor junior designers. Employee shall perform such other duties as reasonably assigned by Employer from time to time.

1.3 Full-Time Commitment. This is a full-time position requiring a minimum of **40 hours per week**. Employee may not undertake other employment or consulting arrangements that create a conflict of interest without prior written approval from Employer.

2. COMPENSATION

2.1 Base Salary. Employer shall pay Employee an annual base salary of **\$112,000.00 (One Hundred Twelve Thousand Dollars)**, payable in bi-weekly installments of \$4,307.69, less applicable tax withholdings and deductions.

2.2 Performance Bonus. Employee shall be eligible for an annual performance bonus of up to **15% of base salary** (\$16,800), based on achievement of mutually agreed KPIs reviewed during the annual performance evaluation in December of each year. Bonus payout is at the sole discretion of Employer and is not guaranteed.

2.3 Equity. Employee shall be granted stock options for **5,000 units** of Brightwave Digital Solutions LLC membership interests, subject to a **4-year vesting schedule with a 1-year cliff**, as detailed in the separate Equity Grant Agreement.

2.4 Salary Reviews. Employee's compensation shall be reviewed annually. Merit increases are not guaranteed and are subject to company performance and budget.

3. BENEFITS

Benefit	Details
Health Insurance	Medical, Dental & Vision — Employer covers 80% of premium
401(k) Plan	Employer matches up to 4% of annual salary
Paid Time Off (PTO)	20 days per year (accrued monthly); 10 federal holidays
Sick Leave	10 days per year; unused sick leave does not carry over
Parental Leave	12 weeks paid for primary caregiver; 4 weeks for secondary
Remote Work	Hybrid — 3 days in-office (Tue/Wed/Thu), 2 days remote
Professional Development	\$2,000 annual budget for courses, conferences, and tools
Equipment	Company-provided MacBook Pro and peripherals

4. AT-WILL EMPLOYMENT AND TERMINATION

4.1 At-Will Status. Employment under this Agreement is **at-will**, meaning either party may terminate the employment relationship at any time, with or without cause or prior notice, subject to the notice provisions below.

4.2 Notice Period. Either party intending to terminate shall provide the other with **30 days' written notice**. Employer may, at its discretion, provide pay in lieu of notice.

4.3 Termination for Cause. Employer may terminate employment immediately without notice or severance for cause, including: (a) gross misconduct or dishonesty; (b) material breach of company policies; (c) conviction of a felony; (d) unauthorized disclosure of confidential information.

4.4 Severance. If Employer terminates Employee without cause after the first 12 months of employment, Employee shall be entitled to **2 weeks' severance pay per year of completed service**, up to a maximum of 12 weeks, subject to signing a separation and release agreement.

5. CONFIDENTIALITY AND INTELLECTUAL PROPERTY

5.1 Confidentiality. During and after employment, Employee shall not disclose any proprietary or confidential information of Employer, including product roadmaps, customer data, financial information, technical trade secrets, or business strategies.

5.2 Work Product. All work created by Employee within the scope of employment shall be considered **work made for hire** and shall be the exclusive property of Employer. Employee assigns all rights, title, and interest in such work to Employer.

6. NON-COMPETE AND NON-SOLICITATION

6.1 Non-Compete. For a period of **12 months** following termination of employment, Employee shall not directly or indirectly engage in, or hold a material interest in, any business that competes directly with Brightwave's SaaS product lines within the **State of Texas**.

6.2 Non-Solicitation of Employees. For a period of **18 months** after termination, Employee shall not directly or indirectly solicit, recruit, or hire any current employee of Employer.

6.3 Non-Solicitation of Clients. For a period of **12 months** after termination, Employee shall not solicit any client or customer of Employer with whom Employee had material contact during the last 24 months of employment.

7. CODE OF CONDUCT AND POLICIES

Employee agrees to abide by all company policies as set out in the Brightwave Employee Handbook (current version and future amendments), including but not limited to: Equal Opportunity and Anti-Harassment Policy, Data Security Policy, Social Media Policy, and Expense Reimbursement Policy. The Employee Handbook does not form part of this contract and may be amended at Employer's discretion.

8. DISPUTE RESOLUTION

8.1 Governing Law. This Agreement is governed by the laws of the **State of Texas**.

8.2 Arbitration. Any dispute arising from or related to this Agreement or Employee's employment shall be resolved by **binding arbitration** administered by JAMS under its Employment Arbitration Rules. The arbitration shall take place in Austin, Texas. The parties waive the right to a jury trial. This clause does not prevent either party from seeking emergency injunctive relief in a court of competent jurisdiction.

9. MISCELLANEOUS

9.1 Entire Agreement. This Agreement, together with the Equity Grant Agreement and the Employee Handbook, constitutes the entire agreement between the parties regarding Employee's employment and supersedes all prior offers, discussions, and agreements.

9.2 Amendment. No amendment shall be effective unless in writing and signed by both parties.

9.3 Severability. If any provision is held unenforceable, it shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in effect.

SIGNATURES

BRIGHTWAVE DIGITAL SOLUTIONS LLC

EMPLOYEE

Rachel Kim, VP of People & Culture

Sofia Marchetti

Date: _____

Date: _____

This document is a demonstration employment contract created for LexAI testing purposes. It does not constitute legal advice.